

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201505775	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/29/2015 2:17 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/29/2016	Precinct: 105		
Date/Time CV Reported Mon, 06/29/2015 11:16 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/14/2015 2:18 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gordon Mak	00480	931804	105 PCT
2. POM Richard Tarver	23842	943860	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gordon Mak	Discourtesy: At § 87(2)(b) in Queens, PO Gordon Mak spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Richard Tarver	Discourtesy: At § 87(2)(b) in Queens, PO Richard Tarver spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Richard Tarver	Force: At § 87(2)(b) in Queens, PO Richard Tarver struck § 87(2)(b) with an asp.	C . Unsubstantiated
D . POM Gordon Mak	Force: At § 87(2)(b) in Queens, PO Gordon Mak used physical force against § 87(2)(b)	D . Unfounded
E . POM Gordon Mak	Abuse: En route to § 87(2)(b), PO Gordon Mak threatened § 87(2)(b) with use of force.	E . Unsubstantiated

Case Summary

On June 29, 2015, at approximately 2 p.m., at § 87(2)(b) in Queens, § 87(2)(b) was approached by PO Richard Tarver and PO Gordon Mak of the 105th Precinct. Upon approaching § 87(2)(b) the officers allegedly said to him, “We deal with this bullshit every day.” (**Allegations A and B**). The officers handcuffed § 87(2)(b) and PO Tarver allegedly hit him across the right eye with his baton, while PO Mak allegedly hit § 87(2)(b) twice in the back (**Allegations C and D**). § 87(2)(b) was transported to § 87(2)(b). PO Mak rode in the ambulance with him. While riding to the hospital, PO Mak allegedly told § 87(2)(b) if he “put anything against” him, officers would come back and get him (**Allegation E**).

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation due to the severity of § 87(2)(b)'s injuries. A notice of claim request was sent to the NYC Comptroller on October 13, 2015, and the results will be added to the case file upon receipt. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- PO Tarver has been a member of the NYPD for eight years and has had three previous allegations involving two cases, with one substantiated allegation. In case 201007008, an allegation of search of person was substantiated with a penalty of instructions. § 87(2)(g)
- PO Mak has been a member of the NYPD for 13 years and has had six previous allegations involving two cases, with no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

In his CCRB statement, § 87(2)(b) alleged that upon first approaching him, the officers told him, “We deal with this bullshit every day.” Subsequent attempts to reach § 87(2)(b) in an attempt to confirm that both officers said this, were unsuccessful. Upon calling § 87(2)(b), where he had been living, the undersigned was informed by his former case worker that he was no longer living at the facility. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) alleged that an officer struck him across the right eye with an asp, while another officer punched him in the back. § 87(2)(b) described the officer who struck him with an asp as a 40-45 year old Indian male, standing 5’10” tall with an average build, black slicked hair with some grey in it, with a mustache and a mark or scar on his face. § 87(2)(b) described the

officer that hit him and threatened him as a 32-40 year old Asian male, standing 6'2" tall, with a built body build but a little chubby, bald with some hair on the side, and a mustache and goatee. PO Tarver is a § 87(2)(b) old black male, § 87(2)(b), with black hair (BR 03). PO Mak is a § 87(2)(b) old Asian male, § 87(2)(b) with balding black hair (BR 04). Both PO Tarver and PO Mak denied striking § 87(2)(b) with an asp or hitting him, but both confirmed they had responded to call about § 87(2)(b) and were responsible for handcuffing him and transporting him to § 87(2)(b) § 87(2)(g)

Allegation A – Discourtesy: At § 87(2)(b) in Queens, PO Gordon Mak spoke rudely to § 87(2)(b)

Allegation B – Discourtesy: At § 87(2)(b) in Queens, PO Richard Tarver spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that at approximately 2 p.m., he called the police to report his wallet as stolen. At the time of the incident, § 87(2)(b) resided at § 87(2)(b), and was seated on a bench outside of § 87(2)(b) a building within the facility. § 87(2)(b) alleged that he observed two officers, identified through investigation as PO Tarver and PO Mak, drive by, U-turn, and then jumped out of the car. The officers told § 87(2)(b) “Put your hands up!” § 87(2)(b) informed the officers that he had been the one to call them, to which the officers allegedly responded, “We deal with this bullshit every day.” (BR 05)

PO Tarver stated that that they received several calls to § 87(2)(b) on June 29, 2015. At approximately 9:00 a.m., PO Tarver and his partner, PO Mak, responded to call about an EDP aided case. (BR 06) They spoke with a case worker for the facility inside of § 87(2)(b) who informed them that § 87(2)(b) was acting irate and angry and identified § 87(2)(b) to them by pointing at him and saying, “That’s him in the red shirt.” The officers approached § 87(2)(b) and asked he was willing to go to the hospital. PO Tarver could not recall whether it was he or PO Mak who asked § 87(2)(b) this question. This was the only command they issued to § 87(2)(b) PO Tarver denied that he or any officer ever told § 87(2)(b) “We deal with this bullshit every day.” (BR 07)

PO Mak stated that at approximately 10:00 a.m., he and PO Tarver responded to § 87(2)(b) regarding a dispute. PO Mak explained that § 87(2)(b) is a “facility for emotionally disturbed people.” When the officers arrived, they went into the building and spoke with two caseworkers, a male and female. The case workers informed PO Mak that “the EDP,” identified as § 87(2)(b) was acting irrational, throwing things, and was a threat to himself and others. § 87(2)(b) was not present at § 87(2)(b) when the officers arrived. PO Mak informed the case workers that they would canvas for § 87(2)(b) and they should call the officers back when § 87(2)(b) returned. The officers then left and canvassed for § 87(2)(b) who they did not find. At 10:25 a.m., the officers finished the canvas and left. At 10:35 a.m., they received a call that § 87(2)(b) was back (BR 08). The officers pulled up in front of § 87(2)(b) and the male case worker came outside and informed them that § 87(2)(b) had come back and was walking away, towards § 87(2)(b) in the direction of § 87(2)(b). The male case worker provided the officers with a description; PO Mak could not recall any details of this description. PO Mak saw one male individual walking alone on the sidewalk and the officers pulled up alongside of him. PO Mak knew this individual was § 87(2)(b) because he was the only male individual walking. While inside the car, PO Mak told § 87(2)(b) “You have to go to the hospital.” PO Mak did not issue § 87(2)(b) any other commands than this and did not say to

him, “We deal with this bullshit every day,” nor did any other officer. (BR 09)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C – Force: At § 87(2)(b) in Queens, PO Richard Tarver struck § 87(2)(b) with an asp.

According to § 87(2)(b) after the officers approached him, he asked them not to touch him because he suffers from post-traumatic flashbacks. PO Tarver grabbed his right hand and placed a handcuff on it, at which point § 87(2)(b) had a flashback and lost consciousness. He stated that was not attempting to resist arrest and only fell due to his flashback. When § 87(2)(b) regained consciousness, he was lying face down on the ground, and the officers instructed him to put his hands behind his back, which § 87(2)(b) complied with, and the officers finished handcuffing him. Once handcuffed, § 87(2)(b) asked the officers to help him up and looked upwards, at which point PO Tarver hit him across the right eye with an asp. After being hit, § 87(2)(b) sat up, still handcuffed, and was sitting on the grass. Approximately five minutes later, three additional police vehicles arrived, and six officers got out. Prior to the additional units arriving, § 87(2)(b) saw PO Tarver put his baton back inside the police car and noted that the baton had blood on it. § 87(2)(b) stated that two of the additional were females and asked what had happened. § 87(2)(b) explained that the officers just beat him up for no reason and had hit him with a baton. PO Tarver replied to § 87(2)(b)'s comment with “We don’t carry batons.”

According to PO Tarver, after § 87(2)(b) was identified to the officers and refused to go to the hospital, they approached him to restrain him. § 87(2)(b) clenched his body in response and continued repeating that he was not going to the hospital. PO Tarver and PO Mak both grabbed one of § 87(2)(b)'s arms. § 87(2)(b) began pushing his arms outward and clenching them, the momentum of these actions caused all three of them to fall to the ground. PO Tarver was not sure how PO Mak fell, but stated both he and § 87(2)(b) landed facedown and all three of them landed in a pile on top of each other, although PO Tarver was not sure in which order. After handcuffing § 87(2)(b) the officers turned him over, at which point PO Tarver observed a laceration to § 87(2)(b)'s forehead. PO Tarver believed that § 87(2)(b) sustained the injury when he fell to the ground, as the area they fell on was a hard cement sidewalk. PO Tarver denied carrying an asp or baton on him. He stated that he is certified to carry them, officers are certified and trained to use them at the academy, and is required to carry one, but no longer does because “with all the stuff going on, it’s not worth carrying anymore.” He stated that PO Mak also did not have his asp or baton on him, and neither of them had their asps or batons anywhere on the location, nor was any asp ever removed from the incident scene by anyone. After § 87(2)(b) was handcuffed, the officers called for an ambulance. While

waiting for the ambulance, their sergeant, Sgt. Clarke arrived onto scene after hearing the original radio run. PO Tarver noted that Sgt. Clarke spoke with § 87(2)(b) who accused Sgt. Clarke of hitting him with an asp. PO Tarver did not know if Sgt. Clarke had an asp on her person.

PO Tarver also recalled that later that day, at approximately 2:00 p.m., PO Tarver and PO Mak responded to another aided case. When they arrived, PO Tarver observed several other officers in the vicinity of the back of § 87(2)(b) and PO Tarver observed § 87(2)(b) sitting on the steps at the back of the building. The workers at the facility wanted § 87(2)(b) to be taken back to the hospital for a psychiatric evaluation. PO Tarver stated that he kept his distance from § 87(2)(b) during this time and let the other officers speak with him because of his prior interaction with § 87(2)(b). § 87(2)(b) was not handcuffed and walked willingly to the ambulance. PO Tarver did not see any officer have physical contact with him and did not see any asps on scene.

According to PO Mak, after § 87(2)(b) refused to go to the hospital, he and PO Tarver exited the vehicle and again told § 87(2)(b) that he had to go to the hospital. § 87(2)(b) started to walk away from the officers. PO Mak estimated that § 87(2)(b) got a couple of steps away from him. PO Mak and PO Tarver approached § 87(2)(b) and each officer grabbed one of § 87(2)(b)'s arms, PO Mak could not recall which of § 87(2)(b)'s arms he grabbed. The officers were trying to restrain § 87(2)(b) who was trying to fight them by trying to back away from the officers as they grabbed him and moving his arms. The momentum of this action caused the officers and § 87(2)(b) to fall to the ground. § 87(2)(b) and PO Mak fell face down on the ground, PO Mak fell on top of § 87(2)(b) and PO Tarver fell on the side of them, PO Mak was not sure if PO Tarver landed face up or down. PO Mak estimated that § 87(2)(b) was lying face down for 30 seconds, during which time PO Mak and PO Tarver handcuffed § 87(2)(b) together. The officers then flipped § 87(2)(b) over, at which point they noticed a cut on the top of his head, PO Mak could not recall specifically where but described the cut as being near the top of § 87(2)(b)'s face. PO Mak had not seen the cut prior to § 87(2)(b) being brought to the ground. PO Mak estimated that the cut was less than an inch long. PO Mak thought that § 87(2)(b) probably sustained the injury from hitting his head on the ground. § 87(2)(b) was complaining about the injury and said that PO Tarver hit him on the head with an asp. PO Mak stated that neither he nor PO Tarver hit § 87(2)(b) with their asp. PO Mak stated that neither he nor PO Tarver used their asps because they did not have their asps on them. PO Mak said he is qualified to use a baton, but not an asp. He did not have his baton with him at the time.

An AIDED report regarding the incident was prepared by PO Mak, which reported the incident as occurring at 10:36 a.m., and described the incident as “..EDP while resisting to be taken into custody EDP hit his head on the ground causing laceration to right eye taken to § 87(2)(b) (BR 10). Photographs of § 87(2)(b)'s laceration were provided to the investigation by his attorney, § 87(2)(b) and were taken during § 87(2)(b)'s CCRB interview (BR 11-12).

PO Mak also recalled that at 2 p.m., they received another call that § 87(2)(b) was acting irrational and needed to go back to the hospital. When the officers responded, § 87(2)(b) was lying down on the ground outside the building, in the back. PO Mak described § 87(2)(b) as being bandaged up, with a bandage on his head. PO Mak did not see any other injuries on § 87(2)(b). Several other officers had also responded to the scene at approximately the same time as PO Mak and PO Tarver, including Sgt. Clarke and her partner, and PO Christopher Miller and

his partner. The officers approached § 87(2)(b) surrounding him, and informed him he needed to go back to the hospital. § 87(2)(b) said that he was not going back and then said that Sgt. Clarke had hit him over the head with an asp. No officer had any physical contact with § 87(2)(b) during this time. Neither PO Mak nor PO Tarver had their baton on him during this time. PO Mak explained that some officers in his command carry asps, but only if they are qualified. PO Mak did not know if Sgt. Clarke or PO Miller are qualified to use asps. He did not see any officer use their asp during this time or strike § 87(2)(b) on the back. § 87(2)(b) then got up and walked towards the ambulance. § 87(2)(b) was not handcuffed and remained compliant.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) incorrectly reported the time of his original interaction and made no reference to having a second interaction with PO Tarver or PO Mak on the same day. Although § 87(2)(b) described himself as compliant throughout the incident, Event § 87(2)(b) lists a call as being made at 10:36 a.m. for an EDP ambulance case, that appears to refer to § 87(2)(b). In the event remarks, § 87(2)(b) is described as “violent,” “threatening,” and “breaking things.” (BR 14).

§ 87(2)(g)

It is undisputed that § 87(2)(b) was injured and received a laceration to his face during this incident. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D – Force: At § 87(2)(b) in Queens, PO Gordon Mak used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after being hit on the eye, § 87(2)(b) felt hard hits to his back, which he alleged was PO Mak, hitting him twice on the back.

During his CCRB interview, PO Mak originally stated that he did not use any physical force to gain compliance of § 87(2)(b) while he was on the ground during his first interaction with

§ 87(2)(b) PO Mak later stated that § 87(2)(b) was attempting get up and the officers, PO Mak could not recall if it was himself or PO Tarver, had to push § 87(2)(b) down. PO Mak held him down on the ground using an open hand on § 87(2)(b)'s leg; this was the only force he used. Besides § 87(2)(b) trying to stand up, the officers did not have any other difficulties handcuffing § 87(2)(b). PO Mak did not ever push down or hit § 87(2)(b) and neither he nor PO Tarver ever hit § 87(2)(b) on the back.

PO Tarver also initially stated that § 87(2)(b) was physically compliant while being handcuffed and did not try to get up. PO Tarver then stated that § 87(2)(b) was not compliant while being handcuffed and he kept tightening his body and refusing to give the officers his arms. PO Tarver stated that because § 87(2)(b) was lying on his arms, PO Tarver had to get under his pectoral muscle to get § 87(2)(b)'s arms. He described it as “wrestling a little.” During this time, PO Mak was trying to get § 87(2)(b)'s other arm, also grabbing his arm from underneath him. This was the only action PO Tarver saw PO Mak take. Once PO Tarver had § 87(2)(b)'s arm, he put his arm behind his back. It was never necessary to push down on his back to get him to stay still or to strike him, and neither PO Tarver nor PO Mak ever punched § 87(2)(b) on the back.

Both PO Mak and PO Tarver stated that during the second interaction with § 87(2)(b) they observed him with bandage over his eye, in the area the laceration was. This was the only injury they observed on him at any point during the day and both PO Mak and PO Tarver denied § 87(2)(b) of ever complaining about back injury. Neither PO Mak nor PO Tarver ever saw any officer have any physical contact with § 87(2)(b) during the second incident.

§ 87(2)(b) provided a photograph of a bruise to § 87(2)(b)'s back. § 87(2)(b) alleged that the photograph was taken on July 6, 2015, a week after the incident (**BR 13**).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unfounded**.

Allegation E – Abuse of Authority: En route to § 87(2)(b) PO Gordon Mak threatened § 87(2)(b) with use of force.

§ 87(2)(b) alleged that while on the way to the hospital, PO Mak told § 87(2)(b) that if he “tried to put anything against him [PO Mak], officers would come back and get him.”

PO Mak denied saying this and stated the only conversation that occurred in the ambulance was § 87(2)(b) repeating that PO Tarver hit him with an asp.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

Squad: 14

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date